PANJAB UNIVERSITY,CHANDIGARH

(Estted. under the Panjab University Act VII of 1947-enacted by the Govt. of India)

FACULTY OF ARTS

SYLLABI

FOR

POSTGRADUATE DIPLOMA
IN
HUMAN RIGHTS AND DUTIES

(THROUGH UNIVERSITY SCHOOL OF OPEN LEARNING)

EXAMINATION, 2011

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PANJAB UNIVERSITY, CHANDIGARH

OUTLINES OF TESTS, SYLLABI AND COURSES OF READING FOR POSTGRADUATE DIPLOMA IN HUMAN RIGHTS AND DUTIES (THROUGH UNIVERSITY SCHOOL OF OPEN LEARNING) FOR THE EXAMINATION OF 2011.

	TITLE OF THE PAPER	EXAM. MARKS	INT. ASS.	TOTAL MARKS
Paper I	Fundamentals of Human Rights and Duties	80	20	100
Paper II	Human Rights Theory and Practice: International Scenario	80	20	100
Paper III	Human Rights Theory and Practice: The Indian Context	80	20	100
Paper IV	Project Work			100

INSTRUCTIONS FOR PAPER: PROJECT REPORT AND EVALUATORS

1. Marks for written papers : 80 and Maximum Marks for Project Report : 100 (80 for the Project Report and 20 for Report Presentation)

2. The emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to asses their basic understanding of Human Right and Duties.

ADDITIONAL INFORMATION

1. The marks allotted to the written assignments received for each paper may be treated as the internal assessment in the three theory papers (Papers I-III)

2. In the case of Paper IV (Project Work), the maximum marks for the Report would be 80 and the 20 marks allotted to Report Presentation will be in lieu of the internal assessment.

PAPER I: FUNDAMENTALS OF HUMAN RIGHTS AND DUTIES

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.

2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, all of which have to be attempted. **(2x10=20 marks)**

3. The remaining essay type questions (Questions 2-9) must comprise Two questions from each unit with internal choice. **(4x15=60 marks)**

4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties

Objectives: The paper seeks a) to introduce the students to the basic concepts of human rights and duties; b) to acquaint them with the evolutionary and theoretical perspectives on human rights; c) to familiarize them about the development debate; and d) to inform them about the general problems relating to human rights.

UNIT I

Understanding Concepts of Human Rights and Duties

- Basic concepts: rights, duties
- Nature of rights: absolute/reasonable; universal/relativistic; discriminatory/justifiably differential; Linkage with core concepts of liberty, equality, dignity, fraternity and justice
- Classification of rights and duties: Rights: moral, social, cultural, economic, civil and political; Duties: towards self, family, community, society, nation/state, humankind and mother earth
- Interrelationship of rights and duties – areas of harmony and conflict

UNIT II

Historical Evolution and Theoretical Perspectives

- Historical evolution: Tracing the history of the development of the concept of Human Rights prior to the Universal Declaration of Human Rights (1948).
- Perspectives: Natural Rights
  Legal/Positivist
  Liberal
  Marxist
  Sociological

UNIT III

Human Rights and the Development Debate

- The development discourse: modernization and globalization
- Alternative models/critiques of development: Gandhian
  Environmental Sustainability
  Feminist
  Neo-Marxist (Dependency)

UNIT IV

General Problems Relating to Human Rights
Poverty and illiteracy
Discrimination (caste, class, gender)
Ecological degradation
Social and Cultural problems: patriarchy, female feticide, domestic violence

ESSENTIAL READINGS

Baxi, Upendra (2002) *The Future of Human Rights*. New Delhi: Oxford University Press.

Dube, M. P. and Neeta Bora, (ed.) (2000) Perspectives on Human Rights New Delhi: Anamika Publishers.

Sanajaoba, N. (2000) *Human Rights in the New Millennium*. New Delhi: Manas Publications.

Vadkar, Praveen, (2000) *Concepts, Theories and Practice of Human Rights*. New Delhi: Rajat Publications.

FURTHER READINGS

Parekh, P. H. (2005/6) *Human Rights Year-Book – 2005*, New Delhi: Universal Law Publishing Co.

Rehman, M. M. et al. (2000) *Human Rights and Human Development: Concepts and Contexts*. New Delhi: Manak Publications.

Zarsky, Lyuba (ed.) (2002) *Human Rights and the Environment*. London: Earthscan Pub.

PAPER II: HUMAN RIGHTS THEORY AND PRACTICE: INTERNATIONAL SCENARIO

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.

2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, all of which have to be attempted. **(2x10=20 marks)**

3. The remaining essay type questions (Questions 2-9) must comprising Two questions from each unit with internal choice. **(4x15=60 marks)**

4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties

Objectives: The paper provides the description of a) international standards; b) international mechanisms; and c) human rights practice in the international context.

UNIT I

International Standards – I
- Universal Declaration of Human Rights (1948)
- International Covenant on Civil and Political Rights (1966)
- International Covenant on Social, Cultural and Economic Rights (1966)
- Optional Protocols

UNIT II

International Standards – II
- International Convention on Elimination of All Forms of Racial Discrimination (ICERD)
- Convention on Elimination of All Forms of Discrimination Against Women (CEDAW)
- Convention on Rights of Child (CRC)
- Convention on Prevention and Punishment of the Crime of Genocide

UNIT III

International Mechanisms
- The UN Commission
- The European Commission
- The American Commission

UNIT IV

Practice With Regard to Various Conventions
- Women and Children
- Sustainable Development: Preserving Environment and Culture
- Terrorism
- Rights of Indigenous People

ESSENTIAL READINGS

Alston, Phillip, ed., *The United Nations and Human Rights*: A Critical Appraisal (Oxford: Clarendon Press, 1992).

Langley, Winstone E., *Encyclopedia of Human Rights Issues since 1945* (London: Fitzroy Dearborn Publishers, 1999).

Verma, R.S., Human Rights: *Burning Issues of the World*, Volumes I, II and III (Delhi: Radiant Publishers, 2000).

FURTHER READINGS

Lauterpacht, Hersch, *An International Bill of the Rights of Man* (New York: Columbia University Press, 1945).

Morsink, Johannes, *The Universal Declaration of Human Rights: Origins, Drafting and Intent* (Philadelphia: University of Pennsylvania Press, 1999).

Vijapur, A.P., *The United Nations at Fifty: Studies in Human Rights* (New Delhi: South Asian Publishers, 1996)

PAPER III: HUMAN RIGHTS THEORY AND PRACTICE: INDIAN CONTEXT

INSTRUCTIONS FOR THE PAPER-SETTER AND THE CANDIDATES

1. In all, NINE questions are to be set.

2. The first question covering the entire syllabus is compulsory comprising 10 short answer questions, all of which have to be attempted. **(2x10=20 marks)**
3. The remaining essay type questions (Questions 2-9) must comprising Two questions from each unit with internal choice. **(4x15=60 marks)**
4. The paper-setter must keep in mind that the emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Rights and Duties

Objectives: The paper a) traces the origin and development of human rights in India; b) discusses the constitutional-legal framework in India; c) describes the enforcement and redressal agencies; and d) analyzes the human rights issues in the Indian context.

UNIT I

Origin and Development of Human Rights in India
- Rights Discourse in Indian National Movement
- Making of the Constitution and Human Rights Concerns
- State of Human Rights and Duties in Contemporary India

UNIT II

Human Rights and Constitutional–Legal Framework in India
- Fundamental Rights and Duties
- Directive Principles of State Policy
- Protection of Human Rights Act: National Human Rights Commission, State Human Rights Commissions

UNIT III

Enforcement and Redressal Mechanism
- Role of Judiciary: Independence of judiciary, judicial review, judicial activism
- Civil Society Initiatives/Safeguards of Human Rights

UNIT 1V

Human Rights Movement in India: Selected Issues
- Women and Children
- Bonded labor and unorganized labor
- Terrorism
- Environment and Sustainable Development
- Rights of the Communities (Minorities and Ethnic Groups)
- Rights of the Aged, Disabled and the Infirm

ESSENTIAL READINGS:

Austin, Granville (2000) *Working of a Democratic Constitution: The Indian Experience*, New Delhi: Oxford University Press.

Kannabiran, K. G. (2003) *The Wages of Impunity: Power, Justice and Human Rights*, New Delhi: Orient Longman.

Ray, Arun, (2004) *National Human Rights Commission in India: Formation, Functioning and Future Prospects*, New Delhi: Atlantic.

Sathe S. P., (2004) *Judicial Activism in India*, New Delhi: OUP.

FURTHER READINGS:

Baxi, Upendra (2002) *The Future of Human Rights*, New Delhi: OUP.

Kothari, Smitu and Harsh Sethi (ed.) (1991) *Rethinking Human Rights: Challenge for theory and Action*, Lokayan, Delhi.

PAPER IV – PROJECT WORK

Maximum Marks = 100 Marks
Project Report = 80 marks
Report Presentation = 20 marks

NOTE: The emphasis of this course is not to test the legal knowledge/accuracy of the candidates but to assess their basic understanding of Human Right and Duties

Each candidate is required to take up a project based on fieldwork, which will carry 100 marks.

Candidates have the liberty to select any topic related to human rights issues, violations, enforcement etc., and may conduct the research/fieldwork in the geographical area of their choice.

For successful completion of the diploma, each candidate is required to submit a typed project report on a given date and present the same before an examiner at the end of the course.

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